

House File 2562

S-5184

1 Amend House File 2562, as amended, passed, and reprinted by
2 the House, as follows:

3 1. Page 1, before line 1 by inserting:

4 <DIVISION I
5 CARE FACILITY PLACEMENT>

6 2. Page 8, after line 11 by inserting:

7 <DIVISION ____
8 PERSONS AUTHORIZED TO CONSENT — CONTINGENT ON ENACTMENT OF
9 LEGISLATION

10 Sec. _____. Section 144H.1, subsection 6, as enacted in
11 Division I of this Act, is amended to read as follows:

12 6. *"Person authorized to consent"* means an individual,
13 in the same order of priority prescribed in section 144A.7,
14 subsection 1, paragraph "b", who shall be guided by the express
15 or implied intentions of the patient and who is reasonably
16 available, willing, and competent to consent, refuse to
17 consent, or withdraw consent on a patient's behalf.

18 Sec. _____. CONTINGENT EFFECTIVE DATE. This division of this
19 Act takes effect only if 2026 Iowa Acts, House File 2305, or
20 successor legislation, amends section 144A.7, subsection 1,
21 paragraph "b", and is substantially similar to the following
22 language:

23 b. If a patient does not have an attorney in fact, a
24 guardian appointed pursuant to chapter 633, or a guardian
25 who has obtained court approval in accordance with section
26 232D.401, subsection 4, paragraph "a", the decision may be made
27 by any of the following individuals, who shall be guided by the
28 express or implied intentions of the patient, in the following
29 order of priority if no individual in the previous priority
30 is reasonably available, willing, and competent to make the
31 decision:

32 (1) The patient's spouse.

33 (2) An adult child of the patient or, if the patient
34 has more than one adult child, the decision agreed to by a
35 majority of the adult children who are reasonably available for

1 consultation with the patient's attending provider.

2 (3) A parent of the patient or if the patient has more than
3 one parent, the decision agreed to by both parents if both
4 are reasonably available for consultation with the patient's
5 attending provider.

6 (4) An adult sibling of the patient or, if the patient
7 has more than one adult sibling, the decision agreed to by a
8 majority of the adult siblings who are reasonably available for
9 consultation with the patient's attending provider.

10 (5) The decision agreed to by a majority of the patient's
11 adult relatives, including but not limited to grandchildren,
12 grandparents, aunts, uncles, nieces, nephews, stepchildren,
13 stepparents, and stepsiblings who are reasonably available for
14 consultation with the patient's attending provider.

15 (6) A close adult friend.>

16 3. Title page, line 2, after <adults> by inserting <,
17 including effective date provisions>

18 4. By renumbering as necessary.

MARK COSTELLO